THE MEMORANDUM, IN ONE PAGE

What we agreed, where it sits in the document, and what is needed to start.

This summarises the Memorandum. It does not replace it. Where this page and a clause differ, the clause governs. The Memorandum records the terms we settled between ourselves on 20 and 21 September, and it is not binding except on confidentiality, status, governing law and the general clauses. The definitive services agreement follows.

The commercial terms

	What it says	Clause
Setup	NGN 25M across five months, Lagos and Abuja, in tranches of 12.5 / 5.0 / 4.0 / 3.5. Exclusive of VAT and of government and regulatory fees, which Medbury pays at cost. The platform build is inside it	4, 5, 21
The two COOs	Medbury employs and pays salary and benefits. CFA recruits both at its own cost and Medbury approves each appointment. Both are seconded to CFA and report to CFA for delivery	7
Support fee	NGN 3M a month from month six, payable in advance on the fifth business day of the month, on a standing instruction	8, 14
Performance	3 per cent of collected net revenue, paid quarterly and trued up annually. One element only, with no share of EBITDA. Payable only where the Board's revenue and EBITDA goals for the period are both met, so it is not paid on revenue bought at the expense of profit. Only items passed through at cost are outside the base	9
Term	24 months, with a formal review at 12 months	22

What the monthly fee buys, which is two things and not one

Clause 8.2	What it covers
The support functions	Finance, marketing and sales, HR, clinical governance and quality, technology, commercial and pricing, procurement, and partner oversight. Each carried at CFA's premises and on CFA's payroll, so none of these posts sits on yours
The direction of the division	Steering the five businesses toward the goals the Board sets, exercised through the seconded chief operating officers. CFA is engaged to manage the division and not merely to service it

Five things worth knowing before you read the clauses

	What it means	Clause
The platform is built, not rented	CFA builds a platform for the division inside the setup fee. No licence fee, build fee or implementation fee, now or later. On payment of the setup fee it is yours, with the source code and the documentation delivered and a copy held in escrow. CFA keeps only the frameworks and libraries it brings and reuses across its work, and you have a perpetual royalty free licence to those	21
There is a plan to hand it back	The Memorandum does not assume CFA manages the division for ever. Each review asks whether it is ready to be run inside Medbury or by a successor, with 90 days' notice, a structured handover and no penalty either way. Everything it runs on is already yours, so a handover is a process rather than a rescue	22
If it goes well, there is a path	Before appointing anyone else to manage another Medbury business on comparable terms, Medbury gives CFA a first opportunity to propose. It does not oblige you to accept it	23
Facilities is not inside this	CFA does facilities management and biomedical engineering and would like to, but it belongs on its own retainer. Before it can be priced we need to settle whether the scope is the whole of Lyfe Place or only the division's spaces, and Lagos and Abuja are quoted apart	20
Clinical responsibility stays with Medbury	The facility, clinical and professional registrations are held in Medbury's name, and clinical care and clinical negligence remain Medbury's. CFA is not a healthcare provider and does not practise medicine	18, 19

What is needed to start

- **Signature, and the first tranche.** The five months run from the date the first tranche is received, so that date is the Commencement Date.
- **The two chief operating officer briefs approved**, so recruitment can open in week one rather than after mobilisation.
- **A named finance contact on each side**, and the standing instruction for the monthly fee set up before month six.

Debo Odulana Consult for Africa / +234 913 813 8553 / hello@consultforafrica.com